

ECCLESIOLOGICAL AND CANONICAL CONSEQUENCES OF THE SACRAMENTAL NATURE OF THE CHURCH: ECCLESIAL COMMUNION, CONCILIARITY AND AUTHORITY

Ravenna, 13 October 2007

Introduction

1. "That they may all be one. As you, Father, are in me and I am in you, may they also be one in us so that the world may believe that you have sent me" (Jn 17, 21). We give thanks to the triune God who has gathered us – members of the Joint International Commission for the Theological Dialogue between the Roman Catholic Church and the Orthodox Church - so that we might respond together in obedience to this prayer of Jesus. We are conscious that our dialogue is restarting in a world that has changed profoundly in recent times. The processes of secularization and globalization, and the challenge posed by new encounters between Christians and believers of other religions, require that the disciples of Christ give witness to their faith, love and hope with a new urgency. May the Spirit of the risen Lord empower our hearts and minds to bear the fruits of unity in the relationship between our Churches, so that together we may serve the unity and peace of the whole human family. May the same Spirit lead us to the full expression of the mystery of ecclesial communion, that we gratefully acknowledge as a wonderful gift of God to the world, a mystery whose beauty radiates especially in the holiness of the saints, to which all are called.

2. Following the plan adopted at its first meeting in Rhodes in 1980, the Joint Commission began by addressing the mystery of ecclesial *koinônia* in the light of the mystery of the Holy Trinity and of the Eucharist. This enabled a deeper understanding of ecclesial communion, both at the level of the local community around its bishop, and at the level of relations between bishops and between the local Churches over which each presides in communion with the One Church of God extending across the universe (cfr. Munich Document, 1982). In order to clarify the nature of communion, the Joint Commission underlined the relationship which exists between faith, the sacraments – especially the three sacraments of Christian initiation – and the unity of the Church (cfr. Bari Document, 1987). Then by studying the sacrament of Order in the sacramental structure of the Church, the Commission indicated clearly the role of apostolic succession as the guarantee of the *koinonia* of the whole Church and of its continuity with the Apostles in every time and place (cfr. Valamo Document, 1988). From 1990 until 2000, the main subject discussed by the Commission was that of "uniatism" (Balamand Document, 1993; Baltimore, 2000), a subject to which we shall give further consideration in the near future. Now we take up the theme raised at the end of the Valamo Document, and reflect upon ecclesial communion, conciliarity and authority.

3. On the basis of these common affirmations of our faith, we must now draw the ecclesiological and canonical consequences which flow from the sacramental nature of the Church. Since the Eucharist, in the light of the Trinitarian mystery, constitutes the criterion of ecclesial life as a whole, how do institutional structures visibly reflect the mystery of this *koinonia*? Since the one and holy Church is realised both in each local Church celebrating the Eucharist and at the same time in the *koinonia* of all the Churches, how does the life of the Churches manifest this sacramental structure?

4. Unity and multiplicity, the relationship between the one Church and the many local Churches,

that constitutive relationship of the Church, also poses the question of the relationship between the authority inherent in every ecclesial institution and the conciliarity which flows from the mystery of the Church as communion. As the terms “authority” and “conciliarity” cover a very wide area, we shall begin by defining the way we understand them.[1]

I. The Foundations of Conciliarity and of Authority

1. Conciliarity

5. The term conciliarity or synodality comes from the word “council” (*synodos* in Greek, *concilium* in Latin), which primarily denotes a gathering of bishops exercising a particular responsibility. It is also possible, however, to take the term in a more comprehensive sense referring to all the members of the Church (cfr. the Russian term *sobornost*). Accordingly we shall speak first of all of conciliarity as signifying that each member of the Body of Christ, by virtue of baptism, has his or her place and proper responsibility in eucharistic *koinonia* (*communio* in Latin). Conciliarity reflects the Trinitarian mystery and finds therein its ultimate foundation. The three persons of the Holy Trinity are “enumerated”, as St Basil the Great says (*On the Holy Spirit*, 45), without the designation as “second” or “third” person implying any diminution or subordination. Similarly, there also exists an order (*taxis*) among local Churches, which however does not imply inequality in their ecclesial nature.

6. The Eucharist manifests the Trinitarian *koinônia* actualized in the faithful as an organic unity of several members each of whom has a charism, a service or a proper ministry, necessary in their variety and diversity for the edification of all in the one ecclesial Body of Christ (cfr. 1 Cor 12, 4-30). All are called, engaged and held accountable – each in a different though no less real manner – in the common accomplishment of the actions which, through the Holy Spirit, make present in the Church the ministry of Christ, “the way, the truth and the life” (Jn 14, 6). In this way, the mystery of salvific *koinonia* with the Blessed Trinity is realized in humankind.

7. The whole community and each person in it bears the “conscience of the Church” (*ekklesiastike syneidesis*), as Greek theology calls it, the *sensus fidelium* in Latin terminology. By virtue of Baptism and Confirmation (Chrismation) each member of the Church exercises a form of authority in the Body of Christ. In this sense, all the faithful (and not just the bishops) are responsible for the faith professed at their Baptism. It is our common teaching that the people of God, having received “the anointing which comes from the Holy One” (1 Jn 2, 20 and 27), in communion with their pastors, cannot err in matters of faith (cfr. Jn 16, 13).

8. In proclaiming the Church’s faith and in clarifying the norms of Christian conduct, the bishops have a specific task by divine institution. “As successors of the Apostles, the bishops are responsible for communion in the apostolic faith and for fidelity to the demands of a life in keeping with the Gospel” (Valamo Document, n. 40).

9. Councils are the principal way in which communion among bishops is exercised (cfr. Valamo Document, n. 52). For “attachment to the apostolic communion binds all the bishops together linking the *episkope* of the local Churches to the College of the Apostles. They too form a college rooted by the Spirit in the ‘once for all’ of the apostolic group, the unique witness to the faith. This means not only that they should be united among themselves in faith, charity, mission, reconciliation, but that they have in common the same responsibility and the same service to the Church” (Munich Document, III, 4).

10. This conciliar dimension of the Church's life belongs to its deep-seated nature. That is to say, it is founded in the will of Christ for his people (cfr. Mt 18, 15-20), even if its canonical realizations are of necessity also determined by history and by the social, political and cultural context. Defined thus, the conciliar dimension of the Church is to be found at the three levels of ecclesial communion, the local, the regional and the universal: at the local level of the diocese entrusted to the bishop; at the regional level of a group of local Churches with their bishops who "recognize who is the first amongst themselves" (Apostolic Canon 34); and at the universal level, where those who are first (*protoi*) in the various regions, together with all the bishops, cooperate in that which concerns the totality of the Church. At this level also, the *protoi* must recognize who is the first amongst themselves.

11. The Church exists in many and different places, which manifests its catholicity. Being "catholic", it is a living organism, the Body of Christ. Each local Church, when in communion with the other local Churches, is a manifestation of the one and indivisible Church of God. To be "catholic" therefore means to be in communion with the one Church of all times and of all places. That is why the breaking of eucharistic communion means the wounding of one of the essential characteristics of the Church, its catholicity.

2. Authority

12. When we speak of authority, we are referring to *exousia*, as it is described in the New Testament. The authority of the Church comes from its Lord and Head, Jesus Christ. Having received his authority from God the Father, Christ after his Resurrection shared it, through the Holy Spirit, with the Apostles (cfr. Jn 20, 22). Through the Apostles it was transmitted to the bishops, their successors, and through them to the whole Church. Jesus Christ our Lord exercised this authority in various ways whereby, until its eschatological fulfilment (cfr. 1 Cor 15, 24-28), the Kingdom of God manifests itself to the world: by teaching (cfr. Mt 5, 2; Lk 5, 3); by performing miracles (cfr. Mk 1, 30-34; Mt 14, 35-36); by driving out impure spirits (cfr. Mk 1, 27; Lk 4, 35-36); in the forgiveness of sins (cfr. Mk 2, 10; Lk 5, 24); and in leading his disciples in the ways of salvation (cfr. Mt 16, 24). In conformity with the mandate received from Christ (cfr. Mt 28, 18-20), the exercise of the authority proper to the apostles and afterwards to the bishops includes the proclamation and the teaching of the Gospel, sanctification through the sacraments, particularly the Eucharist, and the pastoral direction of those who believe (cfr. Lk 10, 16).

13. Authority in the Church belongs to Jesus Christ himself, the one Head of the Church (cfr. Eph 1, 22; 5, 23). By his Holy Spirit, the Church as his Body shares in his authority (cfr. Jn 20, 22-23). Authority in the Church has as its goal the gathering of the whole of humankind into Jesus Christ (cfr. Eph 1,10; Jn 11, 52). The authority linked with the grace received in ordination is not the private possession of those who receive it nor something delegated from the community; rather, it is a gift of the Holy Spirit destined for the service (*diakonia*) of the community and never exercised outside of it. Its exercise includes the participation of the whole community, the bishop being in the Church and the Church in the bishop (cfr. St Cyprian, *Ep.* 66, 8).

14. The exercise of authority accomplished in the Church, in the name of Christ and by the power of the Holy Spirit, must be, in all its forms and at all levels, a service (*diakonia*) of love, as was that of Christ (cfr. Mk 10, 45; Jn 13, 1-16). The authority of which we are speaking, since it expresses divine authority, cannot subsist in the Church except in the love between the one who exercises it and those subject to it. It is, therefore, an authority without domination, without

physical or moral coercion. Since it is a participation in the *exousia* of the crucified and exalted Lord, to whom has been given all authority in heaven and on earth (cfr. Mt 28, 18), it can and must call for obedience. At the same time, because of the Incarnation and the Cross, it is radically different from that of leaders of nations and of the great of this world (cfr. Lk 22, 25-27). While this authority is certainly entrusted to people who, because of weakness and sin, are often tempted to abuse it, nevertheless by its very nature the evangelical identification between authority and service constitutes a fundamental norm for the Church. For Christians, to rule is to serve. The exercise and spiritual efficacy of ecclesial authority are thereby assured through free consent and voluntary co-operation. At a personal level, this translates into obedience to the authority of the Church in order to follow Christ who was lovingly obedient to the Father even unto death and death on a Cross (cfr. Phil 2, 8).

15. Authority within the Church is founded upon the Word of God, present and alive in the community of the disciples. Scripture is the revealed Word of God, as the Church, through the Holy Spirit present and active within it, has discerned it in the living Tradition received from the Apostles. At the heart of this Tradition is the Eucharist (cfr. 1 Cor 10, 16-17; 11, 23-26). The authority of Scripture derives from the fact that it is the Word of God which, read in the Church and by the Church, transmits the Gospel of salvation. Through Scripture, Christ addresses the assembled community and the heart of each believer. The Church, through the Holy Spirit present within it, authentically interprets Scripture, responding to the needs of times and places. The constant custom of the Councils to enthrone the Gospels in the midst of the assembly both attests the presence of Christ in his Word, which is the necessary point of reference for all their discussions and decisions, and at the same time affirms the authority of the Church to interpret this Word of God.

16. In his divine Economy, God wills that his Church should have a structure oriented towards salvation. To this essential structure belong the faith professed and the sacraments celebrated in the apostolic succession. Authority in the ecclesial communion is linked to this essential structure: its exercise is regulated by the canons and statutes of the Church. Some of these regulations may be differently applied according to the needs of ecclesial communion in different times and places, provided that the essential structure of the Church is always respected. Thus, just as communion in the sacraments presupposes communion in the same faith (cfr. Bari Document, nn.29-33), so too, in order for there to be full ecclesial communion, there must be, between our Churches, reciprocal recognition of canonical legislations in their legitimate diversities.

II. The threefold actualization of Conciliarity and Authority

17. Having pointed out the foundation of conciliarity and of authority in the Church, and having noted the complexity of the content of these terms, we must now reply to the following questions: How do institutional elements of the Church visibly express and serve the mystery of *koinonia*? How do the canonical structures of the Churches express their sacramental life? To this end we distinguished between three levels of ecclesial institutions: that of the local Church around its bishop; that of a region taking in several neighbouring local Churches; and that of the whole inhabited earth (*oikoumene*) which embraces all the local Churches.

1. The Local Level

18. The Church of God exists where there is a community gathered together in the Eucharist, presided over, directly or through his presbyters, by a bishop legitimately ordained into the apostolic succession, teaching the faith received from the Apostles, in communion with the other bishops and their Churches. The fruit of this Eucharist and this ministry is to gather into an authentic communion of faith, prayer, mission, fraternal love and mutual aid, all those who have received the Spirit of Christ in Baptism. This communion is the frame in which all ecclesial authority is exercised. Communion is the criterion for its exercise.

19. Each local Church has as its mission to be, by the grace of God, a place where God is served and honoured, where the Gospel is announced, where the sacraments are celebrated, where the faithful strive to alleviate the world's misery, and where each believer can find salvation. It is the light of the world (cfr. Mt 5, 14-16), the leaven (cfr. Mt 13, 33), the priestly community of God (cfr. 1 Pet 2, 5 and 9). The canonical norms which govern it aim at ensuring this mission.

20. By virtue of that very Baptism which made him or her a member of Christ, each baptized person is called, according to the gifts of the one Holy Spirit, to serve within the community (cfr. 1 Cor 12, 4-27). Thus through communion, whereby all the members are at the service of each other, the local Church appears already "synodal" or "conciliar" in its structure. This "synodality" does not show itself only in the relationships of solidarity, mutual assistance and complementarity which the various ordained ministries have among themselves. Certainly, the presbyterium is the council of the bishop (cfr. St Ignatius of Antioch, *To the Trallians*, 3), and the deacon is his "right arm" (*Didascalia Apostolorum*, 2, 28, 6), so that, according to the recommendation of St Ignatius of Antioch, everything be done in concert (cfr. *To the Ephesians*, 6). Synodality, however, also involves all the members of the community in obedience to the bishop, who is the *protos* and head (*kephale*) of the local Church, required by ecclesial communion. In keeping with Eastern and Western traditions, the active participation of the laity, both men and women, of monastics and consecrated persons, is effected in the diocese and the parish through many forms of service and mission.

21. The charisms of the members of the community have their origin in the one Holy Spirit, and are directed to the good of all. This fact sheds light on both the demands and the limits of the authority of each one in the Church. There should be neither passivity nor substitution of functions, neither negligence nor domination of anyone by another. All charisms and ministries in the Church converge in unity under the ministry of the bishop, who serves the communion of the local Church. All are called to be renewed by the Holy Spirit in the sacraments and to respond in constant repentance (*metanoia*), so that their communion in truth and charity is ensured.

2. The Regional Level

22. Since the Church reveals itself to be catholic in the *synaxis* of the local Church, this catholicity must truly manifest itself in communion with the other Churches which confess the same apostolic faith and share the same basic ecclesial structure, beginning with those close at hand in virtue of their common responsibility for mission in that region which is theirs (cfr. Munich Document, III, 3, and Valamo Document, nn.52 and 53). Communion among Churches is expressed in the ordination of bishops. This ordination is conferred according to canonical order by three or more bishops, or at least two (cfr. Nicaea I, Canon 4), who act in the name of the episcopal body and of the people of God, having themselves received their ministry from the Holy Spirit by the imposition of hands in the apostolic succession. When this is accomplished in conformity with the canons,

communion among Churches in the true faith, sacraments and ecclesial life is ensured, as well as living communion with previous generations.

23. Such effective communion among several local Churches, each being the Catholic Church in a particular place, has been expressed by certain practices: the participation of the bishops of neighbouring sees at the ordination of a bishop to the local Church; the invitation to a bishop from another Church to concelebrate at the *synaxis* of the local Church; the welcome extended to the faithful from these other Churches to partake of the eucharistic table; the exchange of letters on the occasion of an ordination; and the provision of material assistance.

24. A canon accepted in the East as in the West, expresses the relationship between the local Churches of a region: "The bishops of each province (*ethnos*) must recognize the one who is first (*protos*) amongst them, and consider him to be their head (*kephale*), and not do anything important without his consent (*gnome*); each bishop may only do what concerns his own diocese (*paroikia*) and its dependent territories. But the first (*protos*) cannot do anything without the consent of all. For in this way concord (*homonoia*) will prevail, and God will be praised through the Lord in the Holy Spirit" (Apostolic Canon 34).

25. This norm, which re-emerges in several forms in canonical tradition, applies to all the relations between the bishops of a region, whether those of a province, a metropolitanate, or a patriarchate. Its practical application may be found in the synods or the councils of a province, region or patriarchate. The fact that the composition of a regional synod is always essentially episcopal, even when it includes other members of the Church, reveals the nature of synodal authority. Only bishops have a deliberative voice. The authority of a synod is based on the nature of the episcopal ministry itself, and manifests the collegial nature of the episcopate at the service of the communion of Churches.

26. A synod (or council) in itself implies the participation of all the bishops of a region. It is governed by the principle of consensus and concord (*homonoia*), which is signified by eucharistic concelebration, as is implied by the final doxology of the above-mentioned Apostolic Canon 34. The fact remains, however, that each bishop in his pastoral care is judge, and is responsible before God for the affairs of his own diocese (cfr. St Cyprian, *Ep.* 55, 21); thus he is the guardian of the catholicity of his local Church, and must be always careful to promote catholic communion with other Churches.

27. It follows that a regional synod or council does not have any authority over other ecclesiastical regions. Nevertheless, the exchange of information and consultations between the representatives of several synods are a manifestation of catholicity, as well as of that fraternal mutual assistance and charity which ought to be the rule between all the local Churches, for the greater common benefit. Each bishop is responsible for the whole Church together with all his colleagues in one and the same apostolic mission.

28. In this manner several ecclesiastical provinces have come to strengthen their links of common responsibility. This was one of the factors giving rise to the patriarchates in the history of our Churches. Patriarchal synods are governed by the same ecclesiological principles and the same canonical norms as provincial synods.

29. In subsequent centuries, both in the East and in the West, certain new configurations of communion between local Churches have developed. New patriarchates and autocephalous Churches have been founded in the Christian East, and in the Latin Church there has recently emerged a particular pattern of grouping of bishops, the Episcopal Conferences. These are not, from an ecclesiological standpoint, merely administrative subdivisions: they express the spirit of

communion in the Church, while at the same time respecting the diversity of human cultures.

30. In fact, regional synodality, whatever its contours and canonical regulation, demonstrates that the Church of God is not a communion of persons or local Churches cut off from their human roots. Because it is the community of salvation and because this salvation is “the restoration of creation” (cfr. St Irenaeus, *Adv. Haer.*, 1, 36, 1), it embraces the human person in everything which binds him or her to human reality as created by God. The Church is not just a collection of individuals; it is made up of communities with different cultures, histories and social structures.

31. In the grouping of local Churches at the regional level, catholicity appears in its true light. It is the expression of the presence of salvation not in an undifferentiated universe but in humankind as God created it and comes to save it. In the mystery of salvation, human nature is at the same time both assumed in its fullness and cured of what sin has infused into it by way of self-sufficiency, pride, distrust of others, aggressiveness, jealousy, envy, falsehood and hatred. Ecclesial *koinonia* is the gift by which all humankind is joined together, in the Spirit of the risen Lord. This unity, created by the Spirit, far from lapsing into uniformity, calls for and thus preserves – and, in a certain way, enhances – diversity and particularity.

3. The Universal Level

32. Each local Church is in communion not only with neighbouring Churches, but with the totality of the local Churches, with those now present in the world, those which have been since the beginning, and those which will be in the future, and with the Church already in glory. According to the will of Christ, the Church is one and indivisible, the same always and in every place. Both sides confess, in the Nicene-Constantinopolitan Creed, that the Church is one and catholic. Its catholicity embraces not only the diversity of human communities but also their fundamental unity.

33. It is clear, therefore, that one and the same faith is to be confessed and lived out in all the local Churches, the same unique Eucharist is to be celebrated everywhere, and one and the same apostolic ministry is to be at work in all the communities. A local Church cannot modify the Creed, formulated by the ecumenical Councils, although the Church ought always “to give suitable answers to new problems, answers based on the Scriptures and in accord and essential continuity with the previous expressions of dogmas” (Bari Document, n.29). Equally, a local Church cannot change a fundamental point regarding the form of ministry by a unilateral decision, and no local Church can celebrate the Eucharist in wilful separation from other local Churches without seriously affecting ecclesial communion. In all of these things one touches on the bond of communion itself – thus, on the very being of the Church.

34. It is because of this communion that all the Churches, through canons, regulate everything relating to the Eucharist and the sacraments, the ministry and ordination, and the handing on (*paradosis*) and teaching (*didaskalia*) of the faith. It is clear why in this domain canonical rules and disciplinary norms are needed.

35. In the course of history, when serious problems arose affecting the universal communion and concord between Churches – in regard either to the authentic interpretation of the faith, or to ministries and their relationship to the whole Church, or to the common discipline which fidelity to the Gospel requires - recourse was made to Ecumenical Councils. These councils were ecumenical not just because they assembled together bishops from all regions and particularly those of the five major sees, Rome, Constantinople, Alexandria, Antioch and Jerusalem, according to the ancient order (*taxis*). It was also because their solemn doctrinal decisions and their common

faith formulations, especially on crucial points, are binding for all the Churches and all the faithful, for all times and all places. This is why the decisions of the Ecumenical Councils remain normative.

36. The history of the Ecumenical Councils shows what are to be considered their special characteristics. This matter needs to be studied further in our future dialogue, taking account of the evolution of ecclesial structures during recent centuries in the East and the West.

37. The ecumenicity of the decisions of a council is recognized through a process of reception of either long or short duration, according to which the people of God as a whole – by means of reflection, discernment, discussion and prayer - acknowledge in these decisions the one apostolic faith of the local Churches, which has always been the same and of which the bishops are the teachers (*didaskaloi*) and the guardians. This process of reception is differently interpreted in East and West according to their respective canonical traditions.

38. Conciliarity or synodality involves, therefore, much more than the assembled bishops. It involves also their Churches. The former are bearers of and give voice to the faith of the latter. The bishops' decisions have to be received in the life of the Churches, especially in their liturgical life. Each Ecumenical Council received as such, in the full and proper sense, is, accordingly, a manifestation of and service to the communion of the whole Church.

39. Unlike diocesan and regional synods, an Ecumenical Council is not an "institution" whose frequency can be regulated by canons; it is rather an "event", a *kairos* inspired by the Holy Spirit who guides the Church so as to engender within it the institutions which it needs and which respond to its nature. This harmony between the Church and the councils is so profound that, even after the break between East and West which rendered impossible the holding of Ecumenical Councils in the strict sense of the term, both Churches continued to hold councils whenever serious crises arose. These councils gathered together the bishops of local Churches in communion with the See of Rome or, although understood in a different way, with the See of Constantinople, respectively. In the Roman Catholic Church, some of these councils held in the West were regarded as ecumenical. This situation, which obliged both sides of Christendom to convoke councils proper to each of them, favoured dissensions which contributed to mutual estrangement. The means which will allow the re-establishment of ecumenical consensus must be sought out.

40. During the first millennium, the universal communion of the Churches in the ordinary course of events was maintained through fraternal relations between the bishops. These relations, among the bishops themselves, between the bishops and their respective *protoi*, and also among the *protoi* themselves in the canonical order (*taxis*) witnessed by the ancient Church, nourished and consolidated ecclesial communion. History records the consultations, letters and appeals to major sees, especially to that of Rome, which vividly express the solidarity that *koinonia* creates. Canonical provisions such as the inclusion of the names of the bishops of the principal sees in the diptychs and the communication of the profession of faith to the other patriarchs on the occasion of elections, are concrete expressions of *koinonia*.

41. Both sides agree that this canonical *taxis* was recognised by all in the era of the undivided Church. Further, they agree that Rome, as the Church that "presides in love" according to the phrase of St Ignatius of Antioch (*To the Romans*, Prologue), occupied the first place in the *taxis*, and that the bishop of Rome was therefore the *protos* among the patriarchs. They disagree, however, on the interpretation of the historical evidence from this era regarding the prerogatives of the bishop of Rome as *protos*, a matter that was already understood in different ways in the first millennium.

42. Conciliarity at the universal level, exercised in the ecumenical councils, implies an active role of the bishop of Rome, as *protos* of the bishops of the major sees, in the consensus of the

assembled bishops. Although the bishop of Rome did not convene the ecumenical councils of the early centuries and never personally presided over them, he nevertheless was closely involved in the process of decision-making by the councils.

43. Primacy and conciliarity are mutually interdependent. That is why primacy at the different levels of the life of the Church, local, regional and universal, must always be considered in the context of conciliarity, and conciliarity likewise in the context of primacy.

Concerning primacy at the different levels, we wish to affirm the following points:

1. Primacy at all levels is a practice firmly grounded in the canonical tradition of the Church.
2. While the fact of primacy at the universal level is accepted by both East and West, there are differences of understanding with regard to the manner in which it is to be exercised, and also with regard to its scriptural and theological foundations.

44. In the history of the East and of the West, at least until the ninth century, a series of prerogatives was recognised, always in the context of conciliarity, according to the conditions of the times, for the *protos* or *kephale* at each of the established ecclesiastical levels: locally, for the bishop as *protos* of his diocese with regard to his presbyters and people; regionally, for the *protos* of each metropolis with regard to the bishops of his province, and for the *protos* of each of the five patriarchates, with regard to the metropolitans of each circumscription; and universally, for the bishop of Rome as *protos* among the patriarchs. This distinction of levels does not diminish the sacramental equality of every bishop or the catholicity of each local Church.

Conclusion

45. It remains for the question of the role of the bishop of Rome in the communion of all the Churches to be studied in greater depth. What is the specific function of the bishop of the “first see” in an ecclesiology of *koinonia* and in view of what we have said on conciliarity and authority in the present text? How should the teaching of the first and second Vatican councils on the universal primacy be understood and lived in the light of the ecclesial practice of the first millennium? These are crucial questions for our dialogue and for our hopes of restoring full communion between us.

46. We, the members of the Joint International Commission for the Theological Dialogue between the Roman Catholic Church and the Orthodox Church, are convinced that the above statement on ecclesial communion, conciliarity and authority represents positive and significant progress in our dialogue, and that it provides a firm basis for future discussion of the question of primacy at the universal level in the Church. We are conscious that many difficult questions remain to be clarified, but we hope that, sustained by the prayer of Jesus “That they may all be one . . . so that the world may believe” (Jn 17, 21), and in obedience to the Holy Spirit, we can build upon the agreement already reached. Reaffirming and confessing “one Lord, one faith, one baptism” (Eph 4, 5), we give glory to God the Holy Trinity, Father, Son and Holy Spirit, who has gathered us together.

[1] Orthodox participants felt it important to emphasize that the use of the terms “the Church”, “the universal Church”, “the indivisible Church” and “the Body of Christ” in this document and in similar documents produced by the Joint Commission in no way undermines the self-understanding of the Orthodox Church as the one, holy, catholic and apostolic Church, of which the Nicene Creed speaks. From the Catholic point of view, the same self-awareness applies: the one, holy, catholic and apostolic Church “subsists in the Catholic Church” (*Lumen Gentium*, 8); this does not exclude acknowledgement that elements of the true Church are present outside the Catholic communion.

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